



Bill Number: S.B. 1286

Kavanagh ADD COW Floor Amendment

Reference to: Senate engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that veterinarian prescriptions based on electronic means for non-tick and flea drugs may be initially issued and renewed one time for a period of 30 days, rather than 14 days.
2. Clarifies that a prescription for antimicrobial drugs based on electronic examination may be issued for only one period of up to 14 days.
3. Specifies that a veterinarian may not issue any further antimicrobial drug prescriptions for the same animal patient for the same ongoing treatment of the same condition unless a veterinarian performs an in-person examination.
4. Allows, for a period of up to three months, veterinarian prescriptions for flea and tick drugs to be initially issued and renewed one time through electronic means.
5. Makes conforming changes.

ADDITIONAL COW
KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1286
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-2240.03, Arizona Revised Statutes, is amended
3 to read:

4 32-2240.03. Veterinarian client patient relationship through
5 electronic means; consent; prescriptions; scope
6 of practice

7 A. Notwithstanding any other law and except for an animal that is
8 used in commercial food production that is regulated under title 3, a
9 veterinarian may establish a veterinarian client patient relationship
10 through electronic means if all of the following apply:

11 1. The veterinarian is licensed pursuant to this chapter or holds a
12 permit pursuant to section 32-2217.01.

13 2. The veterinarian obtains informed consent from the client,
14 including an acknowledgement that the standards of care prescribed by this
15 chapter apply to in-person visits and visits through electronic means.
16 The veterinarian shall maintain for at least three years documentation of
17 the consent described in this paragraph.

18 3. The veterinarian provides the client with the veterinarian's
19 name and contact information and secures an alternate means of contacting
20 the client if the electronic means is interrupted. The electronic or
21 written record provided to the client after the ~~telemedicine~~ visit **THROUGH**
22 **ELECTRONIC MEANS** must include the veterinarian's license number.

1 4. Before conducting an evaluation of the patient through
2 electronic means, the veterinarian advises the client of all of the
3 following:

4 (a) The veterinarian may ultimately recommend an in-person visit.

5 (b) The veterinarian is prohibited by federal law from prescribing
6 some drugs or medications based only on an electronic examination.

7 (c) The appointment through electronic means may be terminated at
8 any time.

9 5. The veterinarian is able to recommend the client to a local
10 veterinarian who can see the animal in person. The client has the option
11 to choose an in-person visit.

12 B. A veterinarian may prescribe drugs or medications after
13 establishing a ~~veterinary~~ VETERINARIAN client patient relationship through
14 electronic means, except that:

15 1. Prescriptions based only on an electronic examination FOR
16 NON-ANTIMICROBIAL DRUGS ~~[AND NON-FLEA AND TICK DRUGS]~~ may be initially
17 issued for up to ~~fourteen~~ THIRTY days and may be renewed one time for up
18 to ~~fourteen~~ THIRTY days with an additional electronic examination.

19 2. PRESCRIPTIONS BASED ONLY ON AN ELECTRONIC EXAMINATION FOR
20 ANTIMICROBIAL DRUGS MAY BE ISSUED ONLY FOR ~~[A]~~ ~~[ONE]~~ PERIOD OF UP TO
21 FOURTEEN DAYS OF TREATMENT. THE VETERINARIAN MAY NOT ISSUE ANY FURTHER
22 ANTIMICROBIAL DRUG PRESCRIPTIONS~~[, INCLUDING ANY REFILLS,]~~ FOR THE SAME
23 ANIMAL PATIENT ~~[FOR THE SAME ONGOING TREATMENT OF THE SAME CONDITION]~~
24 UNLESS ~~[THE]~~ ~~[A]~~ VETERINARIAN PERFORMS AN IN-PERSON EXAMINATION OF THE
25 ANIMAL PATIENT.

26 [3. PRESCRIPTIONS BASED ONLY ON AN ELECTRONIC EXAMINATION FOR FLEA
27 AND TICK DRUGS MAY BE INITIALLY ISSUED FOR UP TO THREE MONTHS AND MAY BE
28 RENEWED ONE TIME FOR A PERIOD OF UP TO THREE MONTHS.]

29 ~~2.~~ ~~[3.]~~ ~~[4.]~~ Prescriptions based only on electronic examinations
30 and that have been renewed once may not be renewed again without an
31 in-person examination.

32 ~~3.~~ ~~[4.]~~ ~~[5.]~~ The veterinarian must notify the client that some
33 prescription drugs or medications may be available at a pharmacy and, if
34 requested, the veterinarian will submit a prescription to a pharmacy that
35 the client chooses.

36 ~~4.~~ ~~[5.]~~ ~~[6.]~~ The veterinarian may not order, prescribe or make
37 available a controlled substance as defined in section 36-2501 unless the
38 veterinarian has performed an in-person physical examination of the

1 patient or made medically appropriate and timely visits to the premises
2 where the patient is kept.

3 ~~5.~~ ~~[6.]~~ [7.] The veterinarian shall prescribe all drugs and
4 medications in accordance with all federal and state laws.

5 C. Veterinarian services provided through electronic means are
6 subject to the rules adopted pursuant to section 32-2275 relating to the
7 practice of veterinary medicine.

8 Enroll and engross to conform

9 Amend title to conform

JOHN KAVANAGH

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8:00 AM

C: JR

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